

Gender and gender identity

Requests concerning the discrimination ground of gender make up around a quarter of the Federal Anti-Discrimination Agency's consultation requests.

Male – Female – Diverse: The "third option" and the General Act on Equal Treatment

More

People report particularly frequently on discrimination in working life: According to these reports, above all women regularly experience sexual harassment at the workplace, pay disparity, discrimination in career advancement or on account of a pregnancy, or upon re-entering the labour force following parental leave.

Trans* or inter* people experience discrimination on account of their gender identity, for instance when recording their (civil status) gender or changing their selected name, for instance when ordering online, filling in forms or certificates. Yet trans* and inter* people are also often confronted with discrimination in daily situations and working life.

The General Equal Treatment Act (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)) bans discrimination of all gender identities and genders in working life and daily activities. Nonetheless, there are gaps in the protection. For example, there is no legal protection from sexual harassment in connection with services, such as when seeking housing.

The Federal Anti-Discrimination Agency provides extensive information on the current legal situation and materials on protecting all genders from discrimination.

FAQs (frequently asked questions) on gender and gender identity

Frequently Asked Questions

1. In which spheres of life does the General Equal Treatment Act protect against gender-based discrimination?

Differences in treatment on grounds of gender are prohibited. The General Equal Treatment Act (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)) above all protects from discrimination on grounds of gender in working life and in some private legal transactions. In working life, this involves certain duties on the employer. They must ensure gender equality in the recruitment process, during employment and in the case of dismissal. Unequal treatment in private legal transactions, specifically bulk business transactions and insurances under private law, is prohibited. Bulk business transactions might, for example, visits to the restaurant, club, barber's or hairdresser's. In addition to the protection from discrimination, the General Equal Treatment Act (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)) also explicitly provides for positive action to promote disadvantaged groups. Positive action can offset existing (structural) disadvantages. This can include, for instance, special promotion programmes or women-only parking spaces.

2. In which areas of the working world does the General Equal Treatment Act protect from gender-based discrimination?

Protection under the General Equal Treatment Act comprises the entire working life, all the way from job application via day-to-day work and promotion to the termination of employment. Even in the recruitment process, a person's gender should not be an obstacle. Equal treatment must be guaranteed over the entire duration of their employment. This covers equal treatment with respect to further training, promotion, working conditions, working hours and pay. In addition, protection from discrimination also applies when terminating the employment. Specifically, a person may not be dismissed because of their gender. If you want to learn more about the topic of equal pay, please visit **this site** (only available in German). For further information on more equality areas, please use our gender equality check **this site** (only available in German).

3. Where in the recruitment process does gender discrimination occur?

Gender discrimination can already start within the **job advert**. According to a study commissioned by the Federal Anti-Discrimination Agency, one in five job adverts involves a risk of discrimination, since not everyone might feel equally addressed by the wording. The most frequent form of discrimination in job adverts is non-gender-neutral wording. In German-language adverts, for instance, this would include the exclusive use of the generic male form as in "*Gerne Berufseinsteiger*" ("career starters welcome").

Adverts where the female form is explicitly used are for traditionally "female" occupations, such as *"wir suchen eine motivierte, flexible Medizinische Fachangestellte"* ("we are looking for a motivated, flexible female medical assistant"). Photos, too, can reflect gender stereotypes. In male- or female-dominated occupational groups, the pictures used are overwhelmingly likely to show the corresponding gender. **Click here for more information on discrimination in job adverts** (only available in German).

Discrimination can continue in the **job interview**. Although questions about family planning or an existing pregnancy are prohibited in job interviews, they are still asked time and again. In this case, applicants need not tell the truth. In addition, headscarf-wearing women are significantly more likely to experience discrimination in the recruitment process. **Further information on this topic can be found in the 'FAQs regarding headscarves at the workplace'**.

4. What gender-related questions are not allowed in job interviews?

As a rule, questions to do with family planning and civil status are not allowed, since they are considered gender-specific questions that tend to only be asked of women. Neither may applicants be asked about their number of children, nor any existing or planned pregnancy nor of any intention to marry. Even in interviews for fixed-term maternity-leave stand-ins or jobs in fields where pregnant women are not allowed to work, these questions may not be asked. If such an impermissible question happens to be asked regardless, it need not be answered truthfully or even answered at all. If the applicant goes on to be employed, their incorrect answer to the impermissible question may not lead to adverse consequences such as dismissal later on. If an applicant suspects that they have been turned down over an impermissible question, they can take legal action. An impermissible question can be an indicator of discrimination. If such an indicator is present, the onus is on the employer to prove that no discrimination has taken place. Only in exceptional instances may an applicant be asked about a characteristic covered by the The General Equal Treatment Act (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)), for instance, if it affects a major occupational requirement.

Information on applicants' rights in job interviews can be found here (only available in German).

5. What is behind the gender pay gap?

There are various aspects to the pay differential between women and men. This differential is represented by the gender pay gap. It can be separated into the "unadjusted" and the "adjusted" pay gap. The unadjusted pay gap refers to the gap between the average gross pay of men and women. This is put at approx. (approximately) 18 % (per cent). "Unadjusted" pay gap means that no allowance is made for structural reasons, and only pay rates are compared. The adjusted pay gap is the pay gap between women and men with comparable qualifications, activities and employment histories. Women are more likely to work in lower-paying occupations or to work part-time and are under-represented in executive positions. All of this leads to women having lower average wages. Discrimination also plays a role.

Our '**FAQs on equal treatment of the genders in working life**' help to assess the legality of unequal pay.

6. What types of discrimination do pregnant women experience in working life and what protection do they have?

We frequently receive requests from pregnant women whose contracts were not made permanent or who got transferred to a worse position. Some were dismissed the day after they returned from their parental leave. During the pregnancy and until the expiry of four full months after delivery, the Maternity Protection Act ensures the protection from unjustified dismissal. For the duration of parental leave, the parent enjoys this specific protection against dismissal; from the first day of work, the general Act on the Protection against Dismissal or the General Equal Treatment Act (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)) is applicable. At the same time, dismissal on grounds of pregnancy or maternity constitutes gender-based discrimination. Those affected are entitled to assert claims for compensation.

7. What forms of discrimination do gainfully employed persons with care duties experience within working life?

Both mothers and fathers report experiencing problems when trying to reconcile work and family life. Taking time off work is likely to have adverse career consequences. Mothers who return to work tend to get overlooked for promotion, sometimes taking on tasks for which they are overqualified. However, fathers taking longer parental leave must also brace for negative reactions.

When registering parental leave, fathers report experiences of discrimination more often than mothers. This was found by the study "Discrimination experiences of gainfully employed persons with care duties in the context of pregnancy, parental leave and family caregiving" (*Diskriminierungserfahrungen von fürsorgenden Erwerbstätigen im Kontext von Schwangerschaft, Elternzeit und Pflege von Angehörigen*), which the Federal Anti-Discrimination Agency unveiled in May 2022.

In the context of this research project, an online survey was conducted among 2,500 parents, whose youngest child was under seven years old, and 504 people who were caring for relatives on a regular basis.

When announcing their decision, fathers experience disparaging or negative remarks from their superiors more often (fathers: 30 % (per cent); mothers: 24 % (per cent)). In addition, more fathers (19 % (per cent)) than mothers (11 % (per cent)) feel pressured into not taking parental leave or reconsidering its duration.

The **duration of parental leave taken up** varies considerably by the parent's gender. Discounting a few exceptions, all of the mothers surveyed took more than two months off. The majority of fathers (64 % (per cent)) only took a maximum of two months leave. Accordingly, more fathers (46 % (per cent)) than mothers (36 % (per cent)) feel that the parental leave is too short.

People who **care for their relatives themselves** also experience discrimination when trying to reconcile work, family and caregiving responsibilities. 54 % (per cent) of interviewees announcing their intention to take caregiver leave or family caregiver leave reported that superiors or executives reacted with disparaging or negative remarks to learning the duration of leave. 45 % (per cent) report that they were put under pressure to not take caregiver leave or cut its intended duration. Expand corporate measures to ensure reconciliation and protection from discrimination:

In its recommendations for action on the **legal opinion "Protecting caregivers from discrimination - Caregiver discrimination"** (*Diskriminierungsschutz von Fürsorgeleistenden – Caregiver Discrimination*), the Federal Anti-Discrimination Agency came out in favour of preventive measures to address caregiver discrimination. Among other suggestions, companies and operations should put in place contacts who cover the topics of pregnancy/parenthood, parental leave and family care-giving, providing information about in-house and outside support opportunities and who can also be approached in case of discrimination in a confidential manner. Moreover, the survey results suggest that adverse and discriminatory experiences of caregivers in the working world continue to be grounded in antiquated gender role assumptions. Here, training programmes, especially aimed at HR (human resource) managers and executives, can help to challenge gender stereotypes and to sensitise them to the risks of discrimination faced by working caregivers.

8. What constitutes sexual harassment in the workplace and what protection is there for those affected?

Sexual harassment covers any sexualised behaviour the person affected does not want. General Equal Treatment Act (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)) prohibits all forms of sexual harassment. The ban covers verbal, non-verbal and physical forms. Lewd comments, jokes or the sharing of pornographic pictures can also constitute sexual harassment. What matters is not the intent, but the objective perception of what happened. In one survey, more than half of the workforce reported having either experienced sexual harassment in the workplace themselves or having witnessed it. Women are more likely to be affected than men. In most cases, harassment manifests as sexualised comments or unwelcome looks. For further details, please refer to the 2019 **study on sexual harassment in the workplace**.

Employers are obliged to protect their staff from discrimination and sexual harassment. If you experience sexual harassment, you should consult an external counselling service such as the Federal Anti-Discrimination Agency or a specialised counselling centre (such as a women's emergency hotline) and then, if appropriate, contact your company's complaints board, works council or equal opportunities officer. **If you want to get in-depth information on the topic of sexual harassment in the workplace, we suggest that you visit our elevant FAQs**' (only available in German).

Some employers lead by example. **Good practice examples against sexual harassment can be found here** (only available in German).

9. What rights do staff have to take action against gender-based discrimination?

Staff have a claim against their employer to ensure the protection from discrimination. This includes being able to file a complaint that the employer then has to investigate. Complaints are lodged with the complaints board, which a company has to set up according to section 13 of the General Equal Treatment Act (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)). If your company has not set up a complaints board, you can turn to the HR (human resources) department.

The Federal Anti-Discrimination Agency also offers assistance. The Anti-Discrimination can, for instance, initiate an amicable settlement of the dispute. With the complainant's agreement, it can request a statement from the company.

Moreover, those affected can assert claims for damages and compensation under Section 15 of the General Equal Treatment Act. If you want to assert such claims, it is important for you to submit them in writing to your employer within two months. The claims can be brought before a labour court up to a maximum of three months after having asserted them in writing to the employer (section 61 b (1) of the Labour Court Act). If either of these deadlines is missed, claims are no longer enforceable. The deadline starts to run when those affected become aware of the discrimination. If the discrimination is permanent, the deadline only starts to run from the moment of the most recent incident.

10. What duties do employers have under the General Equal Treatment Act to protect their staff from gender-based discrimination?

The General Equal Treatment Act (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)) contains organisational duties for the employer to ensure the protection of their staff. These include having to inform their staff that discrimination is not permissible and protecting them from discrimination at the hands of other staff or third parties by taking appropriate measures. The duty comprises preventive protection and staff training. Moreover, an internal complaints board where discrimination can be reported must be set up and made known. The complaint must be examined and the result shared with the person filing the complaint.

However, employers also have other options to preventively address discrimination. For instance, they can make incidents of discrimination known and openly position themselves against them, provide information materials, have their staff receive training and require persons with personnel responsibility to take part in relevant further training. **Further information on employers' duties can be found in the 'FAQs for employers**'.

11. Are there situations where an employer might be allowed to prefer a certain gender over another?

In essence, unequal treatment on grounds of gender is not allowed. In some cases, however, differences in treatment may be justified due to an occupational requirement. For example, it is possible to invite job applications for the head of a women's counselling centre or a position at a girl's boarding school that involves night duty only from female applicants, since this serves to ensure the special protection of a group. Moreover, it can be legitimate that actors and models only be of a specific gender. Differences in treatment are also justified in cases where they serve to offset existing disadvantages. The General Equal Treatment Act (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)) explicitly provides for positive action to promote disadvantaged groups. For instance, a women's quota in male-dominated occupations can help to raise the proportion of women in these occupations. By the same token, further training seminars can be tailored especially to women.

12. Are gendered price differences for products and services permissible?

The practice known as product gender marketing is very common. Product marketing uses choices of colour, motives or direct additions such as “men” to appeal to a specific gender and motivate them to buy the product Some goods are known to be offered at a higher price than their essentially identical counterparts. **The study “Preisdifferenzierung nach Geschlecht in Deutschland“ (“gender pricing in Germany”)** compares products and services and has asked retailers to comment on identified price differences (only available in German). Overall, the majority of products and services was found to be offered at the same price for both genders. There were some discrepancies, though. Most price differences were found between the services of hairdressers or barbers and dry cleaners, mostly at women's expense. The reason cited was the higher amount of work involved. Specifically, a lady’s blouse had to be ironed by hand, while a men’s shirt was ironed mechanically. However, inferring an anticipated amount of work solely from the gender violates the the General Equal Treatment Act (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)). Nor may price differences be used to exhaust different levels of willingness to pay. When it comes to purchasing products, everyone is free to decide to buy the less expensive article irrespective of their gender. With services, invoicing is usually automatically based on the consumer’s gender. Therefore, the authors of the study recommend to calculate services based on the actual input involved and to charge gender-equitable prices. Enforcing the law is difficult due to the minor amounts involved in the individual claims and the absence of a right of associations to take legal action. Moreover, the rights of consumers have yet to be fully clarified.

13. Are insurances allowed to charge different contribution rates from women vs men (e.g. (for example) referring to a potential pregnancy)?

When taking out insurances under private law, differences in treatment based on age, religion, sexual identity or a disability can be permitted. The difference must be based on a recognised actuarial risk calculation. In 2011, the European Court of Justice found that it is forbidden to charge different prices for insurances on grounds of gender. In response, unisex contracts were introduced. Specifically, car insurance surcharges for men, who are statistically more likely to cause accidents, are no longer allowed. Different premiums in case of pregnancy or maternity are also prohibited since this would constitute sex-based discrimination.

To the topic

"Discriminatory Social Attitudes and Varying Gender Pay Gaps within Firms"Simon Janssen, Simon/Tuor Sartore, Simone N./Backes-Gellner, Uschi UZH Business Working Paper Series, 2014
PDF, File does not meet accessibility standards, 2MB

Factsheet:
“Verifying (Equal) Opportunities Right Away –
Diversity Mainstreaming for Public Authorities”
PDF, File does not meet accessibility standards, 284KB

Gendercrime (2012): Gender-based violence, stalking and fear of crime.
PDF, File does not meet accessibility standards, 16MB

→ **Discrimination**
against trans* persons, particularly in the world of work

→ **Risks of discrimination**
in public employment service

→ **Attitudes towards lesbian, gay and bisexual people in Germany**

→ **Survey of subjective experiences of discrimination**

→ **Gender Diversity in Employment and Occupation**

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→ **Sexual harassment at work**

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